



## Questionnaire: Black Rhino – Club Hotel Motel Roma

MN-90008

**Deadline to respond: 5:00pm (AEST) on 17 July 2026**

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Black Rhino Group Pty Ltd's (**BRG**) proposal to acquire Club Hotel Motel Roma and two bottle shops (Cellarbrations at Superstore Roma and The Northern Road Bottle Shop / Bottle-O) from Speedy Cocktails Pty Ltd (**SC**) and Barry John Waldron as trustee for the Barry Waldron Family Trust (the **Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's [Acquisition Register](#).

On 9 July 2026, BRG made a remedy offer to the ACCC of a court-enforceable undertaking pursuant to s87B of the *Competition and Consumer Act 2010* (the **Act**), which requires that BRG must divest, including by procuring divestiture, either the Northern Road bottle shop, the Royal 99 bottle shop, or both, to an ACCC-approved purchaser before it may complete the Acquisition (the **remedy offer**).

The ACCC is assessing BRG's remedy offer and is seeking information and views from stakeholders on the offer. The questions below request views in respect of the remedy offer, and a summary of the offer and copy of BRG's proposed s87B undertaking is available on the ACCC's [Acquisitions Register](#).

The ACCC invites you to provide submissions or information in response to the questions below by **5:00pm (AEST) on 17 July 2026** via email to [mergers@acc.gov.au](mailto:mergers@acc.gov.au) with a copy to [mergersru@acc.gov.au](mailto:mergersru@acc.gov.au), with the title *Submission re: Black Rhino – Club Hotel Motel Roma – Remedy offer*.

If you would prefer to speak to a member of the ACCC case team, please email [mergers@acc.gov.au](mailto:mergers@acc.gov.au) with a copy to [mergersru@acc.gov.au](mailto:mergersru@acc.gov.au), with the title *Request for call re: Black Rhino – Club Hotel Motel Roma – Remedy offer*. Someone from the ACCC case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the Act. This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information. The standard

terms on which the ACCC accepts confidential information are outlined at the end of this document.

## **Questions about the remedy offer**

1. Describe the extent to which BRG's remedy offer would address any concerns you have in relation to the Acquisition.

2. Provide your view on whether the sites that BRG is proposing to divest are likely to attract a suitable purchaser, and the qualities a suitable purchaser would possess.

3. Provide your view on any factors that may impact effective implementation of the remedy offer e.g., undertaking drafting and any third-party consents (including regulatory) required.

4. Provide any additional information or comments you consider relevant to the ACCC's consideration of the remedy offer.

### **Confidentiality of responses**

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

**For further information on confidentiality, see the ACCC's [interim merger process guidelines](#)**